

Law Dialogue Lab

Realistic legal-workplace dialogues, role-play cards, and debrief prompts for advanced ESL learners

Audience: instructors, legal English coaches, peer practice groups, law-firm training teams, and legal operations teams

Focus: high-level professional English for legal workplaces, including client intake, confidentiality, privilege, litigation, discovery, legal writing, contracts, compliance, negotiation, advocacy, and realistic law-office dialogue.

Designed for advanced ESL learners who already work in law, compliance, contracts, legal operations, paralegal support, or law-adjacent business roles and need field-specific fluency.

Teaching stance: this is legal English training, not legal advice. Laws, procedures, professional rules, and court practices vary by jurisdiction and role. Learners should practice language, judgment, and documentation habits while relying on qualified counsel and local rules for legal conclusions.

How to Run the Dialogue Lab

1. Use groups of three: legal speaker, counterpart, observer.
2. Read the model dialogue once. Then replay it with new facts, different risk level, or a different audience.
3. The observer listens for terminology accuracy, careful caveats, fact development, role boundaries, confidentiality awareness, and decision clarity.
4. After each role-play, replay the hardest 30 seconds with a more precise legal-workplace sentence.

Facilitator guardrail

Do not let learners turn role-play into legal advice. Keep the focus on language, reasoning structure, ethical awareness, and escalation habits. When a scenario depends on actual law, ask learners to identify the question and source, not to invent the rule.

1. Client Intake: Strong Emotions, Missing Facts

Setting

A potential client calls after receiving a demand letter from a former business partner.

Speaker	Line
Client	They are lying. Can you tell them we will sue immediately?
Legal team	I understand this feels urgent. Before we discuss strategy, I need to gather facts and run a conflict check.
ESL learner	Can you send the demand letter, the contract, and any recent emails with the former partner? Also, please list the company names and individuals involved so we can check conflicts.
Client	So do we have a case?
ESL learner	I cannot assess that responsibly from one call. After we review the documents and confirm scope, we can identify claims, defenses, deadlines, and practical options.

Language notes

- Good intake language protects trust without promising an outcome.
- Conflict checks and engagement scope should come before substantive commitments.

Three-step decision practice

1. Complete the field language

Use the dialogue and the surrounding evidence to choose the precise term.

I cannot assess that responsibly from one call. After we review the documents and confirm _____, we can identify claims, defenses, deadlines, and practical options.

Option	Phrase
A	scope
B	evidence threshold
C	approval path
D	operating constraint

2. Choose the strongest professional response

Choose the response that acknowledges pressure, names the real boundary, and keeps the decision moving.

In this situation (A potential client calls after receiving a demand letter from a former business partner.), a stakeholder asks for an immediate answer. Which response is the strongest?

Option	Phrase
A	approval path
B	operating constraint
C	decision owner
D	I cannot assess that responsibly from one call. After we review the documents and confirm scope, we can identify claims, defenses, deadlines, and practical options.

3. Select the next decision move

Choose the next move that keeps the work controlled without creating unnecessary delay.

After this situation (A potential client calls after receiving a demand letter from a former business partner.), what should the learner do next?

Option	Phrase
A	Escalate the issue without first naming the decision, evidence gap, or accountable owner.
B	Verify scope, name the decision owner, and state the evidence that would change the recommendation.
C	decision owner
D	Treat urgency as sufficient evidence and commit before the review is complete.

Observer checklist

- Did the learner separate facts, assumptions, legal issues, and conclusions?
- Did the learner use legal terminology accurately and define it when useful?
- Did the learner preserve confidentiality, privilege, conflict, and role boundaries?
- Did the learner make a clear next step, recommendation, or escalation path?

2. Partner Assignment: Research Memo Under Pressure

Setting

A partner asks for a quick memo on whether a forum-selection clause is enforceable.

Speaker	Line
Partner	I need an answer by noon. Is the forum-selection clause enforceable?
ESL learner	I can give you a short answer by noon. To focus the research, which jurisdiction controls, and are we challenging enforcement or defending it?
Partner	Defending it in federal court. The contract chooses Delaware law but the case was filed in California.
ESL learner	Understood. I will check binding Ninth Circuit authority, Delaware choice-of-law relevance, any public-policy exceptions, and procedural posture. I will flag contrary authority separately.

Language notes

- Clarify jurisdiction, posture, desired use, and deadline before researching.
- A legal memo should say how strong the answer is and why.

Three-step decision practice

1. Complete the field language

Use the dialogue and the surrounding evidence to choose the precise term.

Understood. I will check binding Ninth Circuit authority, Delaware choice-of-law relevance, any public-policy exceptions, and procedural posture. I will flag contrary authority _____.

Option	Phrase
A	conditionally
B	separately
C	prematurely
D	informally

2. Choose the strongest professional response

Choose the response that acknowledges pressure, names the real boundary, and keeps the decision moving.

In this situation (A partner asks for a quick memo on whether a forum-selection clause is enforceable.), a stakeholder asks for an immediate answer. Which response is the strongest?

Option	Phrase
A	Understood. I will check binding Ninth Circuit authority, Delaware choice-of-law relevance, any public-policy exceptions, and procedural posture. I will flag contrary authority separately.
B	I can approve the result now and look at separately after the decision.
C	Let's avoid naming separately until the discussion is over.
D	I disagree, but I cannot identify the evidence or condition that would change the decision.

3. Select the next decision move

Choose the next move that keeps the work controlled without creating unnecessary delay.

After this situation (A partner asks for a quick memo on whether a forum-selection clause is enforceable.), what should the learner do next?

Option	Phrase
A	Use broader jargon instead of making the risk and next action clear.
B	evidence threshold
C	Verify separately, name the decision owner, and state the evidence that would change the recommendation.
D	Escalate the issue without first naming the decision, evidence gap, or accountable owner.

Observer checklist

- Did the learner separate facts, assumptions, legal issues, and conclusions?
- Did the learner use legal terminology accurately and define it when useful?
- Did the learner preserve confidentiality, privilege, conflict, and role boundaries?
- Did the learner make a clear next step, recommendation, or escalation path?

3. Contract Redline: Indemnity and Liability Cap

Setting

A SaaS vendor and enterprise customer negotiate risk allocation.

Speaker	Line
Sales lead	The customer rejected our limitation of liability. Can we just accept?
Lawyer	Not without understanding the exposure.
ESL learner	The issue is not only the cap amount. Their redline excludes confidentiality, data security, IP infringement, and indemnity claims from the cap. That could create uncapped exposure.
Sales lead	What is a reasonable fallback?
ESL learner	We can offer a super-cap for data security and IP claims, tied to a multiple of fees, while keeping consequential damages excluded. I would not accept unlimited liability without executive approval.

Language notes

- Contract comments should connect clause language to business risk.
- Fallback language helps business teams negotiate without giving away the legal position too early.

Three-step decision practice

1. Complete the field language

Use the dialogue and the surrounding evidence to choose the precise term.

We can offer a super-cap for data security and IP claims, tied to a multiple of fees, while keeping consequential damages excluded. I would not accept unlimited liability without executive _____.

Option	Phrase
A	approval
B	operating constraint
C	decision owner
D	evidence threshold

2. Choose the strongest professional response

Choose the response that acknowledges pressure, names the real boundary, and keeps the decision moving.

In this situation (A SaaS vendor and enterprise customer negotiate risk allocation.), a stakeholder asks for an immediate answer. Which response is the strongest?

Option	Phrase
A	Let's avoid naming approval until the discussion is over.
B	I disagree, but I cannot identify the evidence or condition that would change the decision.
C	We can offer a super-cap for data security and IP claims, tied to a multiple of fees, while keeping consequential damages excluded. I would not accept unlimited liability without executive approval.
D	I can approve the result now and look at approval after the decision.

3. Select the next decision move

Choose the next move that keeps the work controlled without creating unnecessary delay.

After this situation (A SaaS vendor and enterprise customer negotiate risk allocation.), what should the learner do next?

Option	Phrase
A	Treat urgency as sufficient evidence and commit before the review is complete.
B	Escalate the issue without first naming the decision, evidence gap, or accountable owner.
C	Verify approval, name the decision owner, and state the evidence that would change the recommendation.
D	decision owner

Observer checklist

- Did the learner separate facts, assumptions, legal issues, and conclusions?
- Did the learner use legal terminology accurately and define it when useful?
- Did the learner preserve confidentiality, privilege, conflict, and role boundaries?
- Did the learner make a clear next step, recommendation, or escalation path?

4. Discovery Meet-and-Confer: Overbroad Requests

Setting

Opposing counsel requests all communications from five years across every product line.

Speaker	Line
Opposing counsel	Your objections are boilerplate. We need all communications to understand the pattern.
ESL learner	We disagree that the request is proportional as drafted. It covers unrelated products, custodians, and time periods. We can propose targeted custodians, search terms, and a three-year window tied to the claims.
Opposing counsel	You are withholding relevant evidence.
ESL learner	We are not refusing discovery. We are asking to tailor the scope to nonprivileged, relevant, and proportional material. If you identify specific gaps, we can discuss them.

Language notes

- Meet-and-confer language should be firm, record-conscious, and professional.
- Avoid personal accusations; keep the discussion on scope, burden, relevance, and proportionality.

Three-step decision practice

1. Complete the field language

Use the dialogue and the surrounding evidence to choose the precise term.

We are not refusing discovery. We are asking to tailor the _____ to nonprivileged, relevant, and proportional material. If you identify specific gaps, we can discuss them.

Option	Phrase
A	operating constraint
B	scope
C	evidence threshold
D	approval path

2. Choose the strongest professional response

Choose the response that acknowledges pressure, names the real boundary, and keeps the decision moving.

In this situation (Opposing counsel requests all communications from five years across every product line.), a stakeholder asks for an immediate answer. Which response is the strongest?

Option	Phrase
A	approval path
B	operating constraint
C	decision owner
D	We are not refusing discovery. We are asking to tailor the scope to nonprivileged, relevant, and proportional material. If you identify specific gaps, we can discuss them.

3. Select the next decision move

Choose the next move that keeps the work controlled without creating unnecessary delay.

After this situation (Opposing counsel requests all communications from five years across every product line.), what should the learner do next?

Option	Phrase
A	Escalate the issue without first naming the decision, evidence gap, or accountable owner.
B	Verify scope, name the decision owner, and state the evidence that would change the recommendation.
C	decision owner
D	Treat urgency as sufficient evidence and commit before the review is complete.

Observer checklist

- Did the learner separate facts, assumptions, legal issues, and conclusions?
- Did the learner use legal terminology accurately and define it when useful?
- Did the learner preserve confidentiality, privilege, conflict, and role boundaries?
- Did the learner make a clear next step, recommendation, or escalation path?

5. Deposition Prep: Nervous Witness

Setting

A product manager will be deposed about an internal defect report.

Speaker	Line
Witness	What if I do not remember? I do not want to look unprepared.
ESL learner	If you do not remember, say that. Do not guess. Listen to the full question, answer only that question, and ask for clarification if a term is unclear.
Witness	Can I explain the whole background?
ESL learner	Only if the question asks for it. Your job is to testify truthfully, not to volunteer every fact. If privileged legal advice comes up, pause so counsel can address it.

Language notes

- Deposition prep language must be ethical: truthful, clear, and non-coaching as to substance.
- Learners should avoid scripts that tell a witness what facts to say.

Three-step decision practice

1. Complete the field language

Use the dialogue and the surrounding evidence to choose the precise term.

Only if the question asks for it. Your job is to testify truthfully, not to volunteer every fact. If privileged legal advice comes up, pause so counsel can _____ it.

Option	Phrase
A	approval path
B	address
C	decision owner
D	evidence threshold

2. Choose the strongest professional response

Choose the response that acknowledges pressure, names the real boundary, and keeps the decision moving.

In this situation (A product manager will be deposed about an internal defect report.), a stakeholder asks for an immediate answer. Which response is the strongest?

Option	Phrase
A	Only if the question asks for it. Your job is to testify truthfully, not to volunteer every fact. If privileged legal advice comes up, pause so counsel can address it.
B	I can approve the result now and look at address after the decision.
C	Let's avoid naming address until the discussion is over.
D	I disagree, but I cannot identify the evidence or condition that would change the decision.

3. Select the next decision move

Choose the next move that keeps the work controlled without creating unnecessary delay.

After this situation (A product manager will be deposed about an internal defect report.), what should the learner do next?

Option	Phrase
A	Use broader jargon instead of making the risk and next action clear.
B	evidence threshold
C	Verify address, name the decision owner, and state the evidence that would change the recommendation.
D	Escalate the issue without first naming the decision, evidence gap, or accountable owner.

Observer checklist

- Did the learner separate facts, assumptions, legal issues, and conclusions?
- Did the learner use legal terminology accurately and define it when useful?
- Did the learner preserve confidentiality, privilege, conflict, and role boundaries?
- Did the learner make a clear next step, recommendation, or escalation path?

6. Privilege Review: Copying a Lawyer Is Not Magic

Setting

A review team is deciding whether internal emails are privileged.

Speaker	Line
Reviewer	Legal is copied, so this is privileged.
ESL learner	Maybe, but not automatically. We need to ask whether the email seeks or gives legal advice, who received it, and whether confidentiality was maintained.
Reviewer	This one discusses pricing strategy with counsel copied.
ESL learner	That may be business advice rather than legal advice. Let's tag it for senior review instead of making the privilege call ourselves.

Language notes

- Privilege calls are jurisdiction- and fact-sensitive.
- Escalation language is better than overconfident privilege conclusions.

Three-step decision practice

1. Complete the field language

Use the dialogue and the surrounding evidence to choose the precise term.

That may be business advice rather than legal advice. Let's tag it for senior review instead of making the privilege call _____.

Option	Phrase
A	evidence threshold
B	ourselves
C	Privilege calls
D	Escalation language

2. Choose the strongest professional response

Choose the response that acknowledges pressure, names the real boundary, and keeps the decision moving.

In this situation (A review team is deciding whether internal emails are privileged.), a stakeholder asks for an immediate answer. Which response is the strongest?

Option	Phrase
A	I disagree, but I cannot identify the evidence or condition that would change the decision.
B	evidence threshold
C	approval path
D	That may be business advice rather than legal advice. Let's tag it for senior review instead of making the privilege call ourselves.

3. Select the next decision move

Choose the next move that keeps the work controlled without creating unnecessary delay.

After this situation (A review team is deciding whether internal emails are privileged.), what should the learner do next?

Option	Phrase
A	decision owner
B	Verify ourselves, name the decision owner, and state the evidence that would change the recommendation.
C	approval path
D	operating constraint

Observer checklist

- Did the learner separate facts, assumptions, legal issues, and conclusions?
- Did the learner use legal terminology accurately and define it when useful?
- Did the learner preserve confidentiality, privilege, conflict, and role boundaries?
- Did the learner make a clear next step, recommendation, or escalation path?

7. Motion Strategy: Dismiss or Summary Judgment?

Setting

The team discusses whether to challenge a weak claim early.

Speaker	Line
Client	The claim is false. Can we file a motion to dismiss?
Lawyer	A motion to dismiss usually tests legal sufficiency, not whether the facts are true.
ESL learner	If the complaint fails to state a required element, dismissal may be worth researching. If our argument depends on evidence outside the pleadings, summary judgment may be the better later vehicle.
Client	So we wait?
ESL learner	We should evaluate cost, timing, likelihood of success, and whether an early motion educates the court or only delays discovery.

Language notes

- Procedural posture changes the available argument.
- A client-friendly explanation should distinguish legal sufficiency from factual proof.

Three-step decision practice

1. Complete the field language

Use the dialogue and the surrounding evidence to choose the precise term.

We should evaluate cost, timing, likelihood of success, and whether an early motion educates the court or only delays

Option	Phrase
A	discovery
B	approval path
C	operating constraint
D	decision owner

2. Choose the strongest professional response

Choose the response that acknowledges pressure, names the real boundary, and keeps the decision moving.

In this situation (The team discusses whether to challenge a weak claim early.), a stakeholder asks for an immediate answer. Which response is the strongest?

Option	Phrase
A	I can approve the result now and look at discovery after the decision.
B	Let's avoid naming discovery until the discussion is over.
C	I disagree, but I cannot identify the evidence or condition that would change the decision.
D	We should evaluate cost, timing, likelihood of success, and whether an early motion educates the court or only delays discovery.

3. Select the next decision move

Choose the next move that keeps the work controlled without creating unnecessary delay.

After this situation (The team discusses whether to challenge a weak claim early.), what should the learner do next?

Option	Phrase
A	decision owner
B	Verify discovery, name the decision owner, and state the evidence that would change the recommendation.
C	approval path
D	operating constraint

Observer checklist

- Did the learner separate facts, assumptions, legal issues, and conclusions?
- Did the learner use legal terminology accurately and define it when useful?
- Did the learner preserve confidentiality, privilege, conflict, and role boundaries?
- Did the learner make a clear next step, recommendation, or escalation path?

8. Settlement Caucus: Risk, Cost, and Authority

Setting

During mediation, the client wants to reject a settlement offer on principle.

Speaker	Line
Client	I would rather go to trial than pay them anything.
ESL learner	That is a valid business position, but let's separate principle from decision risk. Trial could vindicate the company, but it also means legal fees, management distraction, uncertainty, and potential adverse precedent.
Client	What range do you recommend?
ESL learner	Based on current evidence, litigation cost, and downside exposure, I recommend authority up to this range, but only with confidentiality, no admission of liability, and a mutual release.

Language notes

- Settlement language should respect client values while surfacing decision consequences.
- Authority, release, confidentiality, and non-admission terms often matter as much as amount.

Three-step decision practice

1. Complete the field language

Use the dialogue and the surrounding evidence to choose the precise term.

Based on current _____, litigation cost, and downside exposure, I recommend authority up to this range, but only with confidentiality, no admission of liability, and a mutual release.

Option	Phrase
A	operating constraint
B	decision owner
C	evidence
D	approval path

2. Choose the strongest professional response

Choose the response that acknowledges pressure, names the real boundary, and keeps the decision moving.

In this situation (During mediation, the client wants to reject a settlement offer on principle.), a stakeholder asks for an immediate answer. Which response is the strongest?

Option	Phrase
A	I can approve the result now and look at evidence after the decision.
B	Based on current evidence, litigation cost, and downside exposure, I recommend authority up to this range, but only with confidentiality, no admission of liability, and a mutual release.
C	operating constraint
D	decision owner

3. Select the next decision move

Choose the next move that keeps the work controlled without creating unnecessary delay.

After this situation (During mediation, the client wants to reject a settlement offer on principle.), what should the learner do next?

Option	Phrase
A	Treat urgency as sufficient evidence and commit before the review is complete.
B	Escalate the issue without first naming the decision, evidence gap, or accountable owner.
C	Use broader jargon instead of making the risk and next action clear.
D	Verify evidence, name the decision owner, and state the evidence that would change the recommendation.

Observer checklist

- Did the learner separate facts, assumptions, legal issues, and conclusions?
- Did the learner use legal terminology accurately and define it when useful?
- Did the learner preserve confidentiality, privilege, conflict, and role boundaries?
- Did the learner make a clear next step, recommendation, or escalation path?

9. Compliance Review: Advertising Claim Substantiation

Setting

Marketing wants to launch an ad saying a product is 'clinically proven' to improve focus.

Speaker	Line
Marketing	Competitors make stronger claims than this. Can we approve it?
ESL learner	We need substantiation for the express and implied claims before launch. 'Clinically proven' suggests reliable evidence, not just user testimonials.
Marketing	We have a small internal survey.
ESL learner	That may support customer satisfaction, but probably not a clinical efficacy claim. A safer path is to revise the claim to match the evidence or obtain stronger support before release.

Language notes

- Compliance review often turns on what a reasonable consumer may take from the claim.
- The legal team should propose a compliant alternative, not only block the campaign.

Three-step decision practice

1. Complete the field language

Use the dialogue and the surrounding evidence to choose the precise term.

That may support customer satisfaction, but probably not a clinical efficacy claim. A safer path is to revise the claim to match the _____ or obtain stronger support before release.

Option	Phrase
A	operating constraint
B	evidence
C	evidence threshold
D	approval path

2. Choose the strongest professional response

Choose the response that acknowledges pressure, names the real boundary, and keeps the decision moving.

In this situation (Marketing wants to launch an ad saying a product is 'clinically proven' to improve focus.), a stakeholder asks for an immediate answer. Which response is the strongest?

Option	Phrase
A	I can approve the result now and look at evidence after the decision.
B	Let's avoid naming evidence until the discussion is over.
C	I disagree, but I cannot identify the evidence or condition that would change the decision.
D	That may support customer satisfaction, but probably not a clinical efficacy claim. A safer path is to revise the claim to match the evidence or obtain stronger support before release.

3. Select the next decision move

Choose the next move that keeps the work controlled without creating unnecessary delay.

After this situation (Marketing wants to launch an ad saying a product is 'clinically proven' to improve focus.), what should the learner do next?

Option	Phrase
A	evidence threshold
B	approval path
C	operating constraint
D	Verify evidence, name the decision owner, and state the evidence that would change the recommendation.

Observer checklist

- Did the learner separate facts, assumptions, legal issues, and conclusions?
- Did the learner use legal terminology accurately and define it when useful?
- Did the learner preserve confidentiality, privilege, conflict, and role boundaries?
- Did the learner make a clear next step, recommendation, or escalation path?

10. Board Briefing: Material Risk and Disclosure

Setting

An in-house legal team briefs executives on a regulatory inquiry.

Speaker	Line
CFO	Do we have to disclose this inquiry?
General counsel	We need a materiality analysis before answering.
ESL learner	Current facts: the regulator requested documents, no allegations have been filed, potential exposure is uncertain, and the issue relates to a growing product line. The disclosure question depends on likelihood, magnitude, existing public statements, and investor significance.
CFO	Can we say it is not material?
ESL learner	I would not say that yet. We can say legal is assessing materiality and will update the disclosure committee after reviewing the request and business impact.

Language notes

- Materiality language should not be rushed.
- Board and executive updates need known facts, unknowns, timing, owner, and decision path.

Three-step decision practice

1. Complete the field language

Use the dialogue and the surrounding evidence to choose the precise term.

I would not say that yet. We can say legal is assessing materiality and will update the disclosure committee after reviewing the request and business _____.

Option	Phrase
A	evidence threshold
B	approval path
C	operating constraint
D	impact

2. Choose the strongest professional response

Choose the response that acknowledges pressure, names the real boundary, and keeps the decision moving.

In this situation (An in-house legal team briefs executives on a regulatory inquiry.), a stakeholder asks for an immediate answer. Which response is the strongest?

Option	Phrase
A	approval path
B	operating constraint
C	I would not say that yet. We can say legal is assessing materiality and will update the disclosure committee after reviewing the request and business impact.
D	evidence threshold

3. Select the next decision move

Choose the next move that keeps the work controlled without creating unnecessary delay.

After this situation (An in-house legal team briefs executives on a regulatory inquiry.), what should the learner do next?

Option	Phrase
A	Verify impact, name the decision owner, and state the evidence that would change the recommendation.
B	evidence threshold
C	approval path
D	operating constraint

Observer checklist

- Did the learner separate facts, assumptions, legal issues, and conclusions?
- Did the learner use legal terminology accurately and define it when useful?
- Did the learner preserve confidentiality, privilege, conflict, and role boundaries?
- Did the learner make a clear next step, recommendation, or escalation path?

11. Internal Investigation: Neutral Interviewing

Setting

Legal interviews an employee about a possible policy violation.

Speaker	Line
Employee	Am I being accused of something?
ESL learner	We are gathering facts about a concern that was reported. I am not here to argue with you or make a final decision today.
Employee	Should I delete my personal notes?
ESL learner	No. Please preserve documents and messages that may relate to this topic. If you are unsure whether something is relevant, ask before deleting or changing it.
Employee	Can you tell me what other people said?
ESL learner	I cannot share interview details. I can ask you about your own recollection and any documents that may help us understand the timeline.

Language notes

- Investigation questions should avoid suggesting the desired answer.
- Preservation language should be simple, direct, and documented.

Three-step decision practice

1. Complete the field language

Use the dialogue and the surrounding evidence to choose the precise term.

I cannot share interview details. I can ask you about your own recollection and any documents that may help us understand the _____.

Option	Phrase
A	timeline
B	evidence threshold
C	approval path
D	operating constraint

2. Choose the strongest professional response

Choose the response that acknowledges pressure, names the real boundary, and keeps the decision moving.

In this situation (Legal interviews an employee about a possible policy violation.), a stakeholder asks for an immediate answer. Which response is the strongest?

Option	Phrase
A	I cannot share interview details. I can ask you about your own recollection and any documents that may help us understand the timeline.
B	I can approve the result now and look at timeline after the decision.
C	Let's avoid naming timeline until the discussion is over.
D	I disagree, but I cannot identify the evidence or condition that would change the decision.

3. Select the next decision move

Choose the next move that keeps the work controlled without creating unnecessary delay.

After this situation (Legal interviews an employee about a possible policy violation.), what should the learner do next?

Option	Phrase
A	Verify timeline, name the decision owner, and state the evidence that would change the recommendation.
B	Use broader jargon instead of making the risk and next action clear.
C	evidence threshold
D	approval path

Observer checklist

- Did the learner separate facts, assumptions, legal issues, and conclusions?
- Did the learner use legal terminology accurately and define it when useful?
- Did the learner preserve confidentiality, privilege, conflict, and role boundaries?
- Did the learner make a clear next step, recommendation, or escalation path?

12. Oral Argument: Answering the Hard Question

Setting

A judge asks about the weakest point in counsel's statutory interpretation.

Speaker	Line
Judge	Counsel, does your reading make subsection (c) unnecessary?
ESL learner	No, Your Honor. Subsection (c) still does work in two situations. First, it covers post-termination conduct. Second, it supplies the remedy when the notice period has expired.
Judge	But the other side says that is not in the text.
ESL learner	Respectfully, the text supports it when subsections (b) and (c) are read together. If the Court disagrees, our narrower fallback is that dismissal should be without prejudice because the defect is curable.

Language notes

- Advocacy language should answer directly, then explain.
- Fallback arguments preserve credibility when the main argument faces pressure.

Three-step decision practice

1. Complete the field language

Use the dialogue and the surrounding evidence to choose the precise term.

Respectfully, the text supports it when subsections (b) and (c) are read together. If the Court disagrees, our narrower fallback is that dismissal should be without prejudice because the defect is _____.

Option	Phrase
A	curable
B	evidence threshold
C	approval path
D	operating constraint

2. Choose the strongest professional response

Choose the response that acknowledges pressure, names the real boundary, and keeps the decision moving.

In this situation (A judge asks about the weakest point in counsel's statutory interpretation.), a stakeholder asks for an immediate answer. Which response is the strongest?

Option	Phrase
A	approval path
B	Respectfully, the text supports it when subsections (b) and (c) are read together. If the Court disagrees, our narrower fallback is that dismissal should be without prejudice because the defect is curable.
C	I disagree, but I cannot identify the evidence or condition that would change the decision.
D	evidence threshold

3. Select the next decision move

Choose the next move that keeps the work controlled without creating unnecessary delay.

After this situation (A judge asks about the weakest point in counsel's statutory interpretation.), what should the learner do next?

Option	Phrase
A	Treat urgency as sufficient evidence and commit before the review is complete.
B	Escalate the issue without first naming the decision, evidence gap, or accountable owner.
C	Use broader jargon instead of making the risk and next action clear.
D	Verify curable, name the decision owner, and state the evidence that would change the recommendation.

Observer checklist

- Did the learner separate facts, assumptions, legal issues, and conclusions?
- Did the learner use legal terminology accurately and define it when useful?
- Did the learner preserve confidentiality, privilege, conflict, and role boundaries?
- Did the learner make a clear next step, recommendation, or escalation path?

Answer Key and Rationale

Check each stage after completing the practice sequence. The rationale explains the decision skill the strongest response demonstrates.

1. Client Intake: Strong Emotions, Missing Facts - 1. Complete the field language

Correct answer	Why it fits
A. scope	'scope' is the precise language in this response. The other options are plausible workplace terms, but they do not fit this sentence's meaning and form. This is the precise term already used in the professional response. It fits both the grammar and the technical meaning.

1. Client Intake: Strong Emotions, Missing Facts - 2. Choose the strongest professional response

Correct answer	Why it fits
D. I cannot assess that responsibly from one call. After we review the documents and confirm scope, we can identify claims, defenses, deadlines, and practical options.	The strongest response is specific about what must be checked and avoids either false certainty or vague resistance. This response protects the decision while still moving the conversation forward.

1. Client Intake: Strong Emotions, Missing Facts - 3. Select the next decision move

Correct answer	Why it fits
B. Verify scope, name the decision owner, and state the evidence that would change the recommendation.	A practical next move connects a named fact to an owner and a condition for proceeding, revising, or escalating. This creates a bounded decision: a fact to verify, an accountable person, and a clear condition for action.

2. Partner Assignment: Research Memo Under Pressure - 1. Complete the field language

Correct answer	Why it fits
B. separately	'separately' is the precise language in this response. The other options are plausible workplace terms, but they do not fit this sentence's meaning and form. This is the precise term already used in the professional response. It fits both the grammar and the technical meaning.

2. Partner Assignment: Research Memo Under Pressure - 2. Choose the strongest professional response

Correct answer	Why it fits
A. Understood. I will check binding Ninth Circuit authority, Delaware choice-of-law relevance, any public-policy exceptions, and procedural posture. I will flag contrary authority separately.	The strongest response is specific about what must be checked and avoids either false certainty or vague resistance. This response protects the decision while still moving the conversation forward.

2. Partner Assignment: Research Memo Under Pressure - 3. Select the next decision move

Correct answer	Why it fits
C. Verify separately, name the decision owner, and state the evidence that would change the recommendation.	A practical next move connects a named fact to an owner and a condition for proceeding, revising, or escalating. This creates a bounded decision: a fact to verify, an accountable person, and a clear condition for action.

3. Contract Redline: Indemnity and Liability Cap - 1. Complete the field language

Correct answer	Why it fits
A. approval	'approval' is the precise language in this response. The other options are plausible workplace terms, but they do not fit this sentence's meaning and form. This is the precise term already used in the professional response. It fits both the grammar and the technical meaning.

3. Contract Redline: Indemnity and Liability Cap - 2. Choose the strongest professional response

Correct answer	Why it fits
C. We can offer a super-cap for data security and IP claims, tied to a multiple of fees, while keeping consequential damages excluded. I would not accept unlimited liability without executive approval.	The strongest response is specific about what must be checked and avoids either false certainty or vague resistance. This response protects the decision while still moving the conversation forward.

3. Contract Redline: Indemnity and Liability Cap - 3. Select the next decision move

Correct answer	Why it fits
C. Verify approval, name the decision owner, and state the evidence that would change the recommendation.	A practical next move connects a named fact to an owner and a condition for proceeding, revising, or escalating. This creates a bounded decision: a fact to verify, an accountable person, and a clear condition for action.

4. Discovery Meet-and-Confer: Overbroad Requests - 1. Complete the field language

Correct answer	Why it fits
B. scope	'scope' is the precise language in this response. The other options are plausible workplace terms, but they do not fit this sentence's meaning and form. This is the precise term already used in the professional response. It fits both the grammar and the technical meaning.

4. Discovery Meet-and-Confer: Overbroad Requests - 2. Choose the strongest professional response

Correct answer	Why it fits
D. We are not refusing discovery. We are asking to tailor the scope to nonprivileged, relevant, and proportional material. If you identify specific gaps, we can discuss them.	The strongest response is specific about what must be checked and avoids either false certainty or vague resistance. This response protects the decision while still moving the conversation forward.

4. Discovery Meet-and-Confer: Overbroad Requests - 3. Select the next decision move

Correct answer	Why it fits
B. Verify scope, name the decision owner, and state the evidence that would change the recommendation.	A practical next move connects a named fact to an owner and a condition for proceeding, revising, or escalating. This creates a bounded decision: a fact to verify, an accountable person, and a clear condition for action.

5. Deposition Prep: Nervous Witness - 1. Complete the field language

Correct answer	Why it fits
B. address	'address' is the precise language in this response. The other options are plausible workplace terms, but they do not fit this sentence's meaning and form. This is the precise term already used in the professional response. It fits both the grammar and the technical meaning.

5. Deposition Prep: Nervous Witness - 2. Choose the strongest professional response

Correct answer	Why it fits
A. Only if the question asks for it. Your job is to testify truthfully, not to volunteer every fact. If privileged legal advice comes up, pause so counsel can address it.	The strongest response is specific about what must be checked and avoids either false certainty or vague resistance. This response protects the decision while still moving the conversation forward.

5. Deposition Prep: Nervous Witness - 3. Select the next decision move

Correct answer	Why it fits
C. Verify address, name the decision owner, and state the evidence that would change the recommendation.	A practical next move connects a named fact to an owner and a condition for proceeding, revising, or escalating. This creates a bounded decision: a fact to verify, an accountable person, and a clear condition for action.

6. Privilege Review: Copying a Lawyer Is Not Magic - 1. Complete the field language

Correct answer	Why it fits
B. ourselves	'ourselves' is the precise language in this response. The other options are plausible workplace terms, but they do not fit this sentence's meaning and form. This is the precise term already used in the professional response. It fits both the grammar and the technical meaning.

6. Privilege Review: Copying a Lawyer Is Not Magic - 2. Choose the strongest professional response

Correct answer	Why it fits
D. That may be business advice rather than legal advice. Let's tag it for senior review instead of making the privilege call ourselves.	The strongest response is specific about what must be checked and avoids either false certainty or vague resistance. This response protects the decision while still moving the conversation forward.

6. Privilege Review: Copying a Lawyer Is Not Magic - 3. Select the next decision move

Correct answer	Why it fits
B. Verify ourselves, name the decision owner, and state the evidence that would change the recommendation.	A practical next move connects a named fact to an owner and a condition for proceeding, revising, or escalating. This creates a bounded decision: a fact to verify, an accountable person, and a clear condition for action.

7. Motion Strategy: Dismiss or Summary Judgment? - 1. Complete the field language

Correct answer	Why it fits
A. discovery	'discovery' is the precise language in this response. The other options are plausible workplace terms, but they do not fit this sentence's meaning and form. This is the precise term already used in the professional response. It fits both the grammar and the technical meaning.

7. Motion Strategy: Dismiss or Summary Judgment? - 2. Choose the strongest professional response

Correct answer	Why it fits
D. We should evaluate cost, timing, likelihood of success, and whether an early motion educates the court or only delays discovery.	The strongest response is specific about what must be checked and avoids either false certainty or vague resistance. This response protects the decision while still moving the conversation forward.

7. Motion Strategy: Dismiss or Summary Judgment? - 3. Select the next decision move

Correct answer	Why it fits
B. Verify discovery, name the decision owner, and state the evidence that would change the recommendation.	A practical next move connects a named fact to an owner and a condition for proceeding, revising, or escalating. This creates a bounded decision: a fact to verify, an accountable person, and a clear condition for action.

8. Settlement Caucus: Risk, Cost, and Authority - 1. Complete the field language

Correct answer	Why it fits
C. evidence	'evidence' is the precise language in this response. The other options are plausible workplace terms, but they do not fit this sentence's meaning and form. This is the precise term already used in the professional response. It fits both the grammar and the technical meaning.

8. Settlement Caucus: Risk, Cost, and Authority - 2. Choose the strongest professional response

Correct answer	Why it fits
B. Based on current evidence, litigation cost, and downside exposure, I recommend authority up to this range, but only with confidentiality, no admission of liability, and a mutual release.	The strongest response is specific about what must be checked and avoids either false certainty or vague resistance. This response protects the decision while still moving the conversation forward.

8. Settlement Caucus: Risk, Cost, and Authority - 3. Select the next decision move

Correct answer	Why it fits
D. Verify evidence, name the decision owner, and state the evidence that would change the recommendation.	A practical next move connects a named fact to an owner and a condition for proceeding, revising, or escalating. This creates a bounded decision: a fact to verify, an accountable person, and a clear condition for action.

9. Compliance Review: Advertising Claim Substantiation - 1. Complete the field language

Correct answer	Why it fits
B. evidence	'evidence' is the precise language in this response. The other options are plausible workplace terms, but they do not fit this sentence's meaning and form. This is the precise term already used in the professional response. It fits both the grammar and the technical meaning.

9. Compliance Review: Advertising Claim Substantiation - 2. Choose the strongest professional response

Correct answer	Why it fits
D. That may support customer satisfaction, but probably not a clinical efficacy claim. A safer path is to revise the claim to match the evidence or obtain stronger support before release.	The strongest response is specific about what must be checked and avoids either false certainty or vague resistance. This response protects the decision while still moving the conversation forward.

9. Compliance Review: Advertising Claim Substantiation - 3. Select the next decision move

Correct answer	Why it fits
D. Verify evidence, name the decision owner, and state the evidence that would change the recommendation.	A practical next move connects a named fact to an owner and a condition for proceeding, revising, or escalating. This creates a bounded decision: a fact to verify, an accountable person, and a clear condition for action.

10. Board Briefing: Material Risk and Disclosure - 1. Complete the field language

Correct answer	Why it fits
D. impact	'impact' is the precise language in this response. The other options are plausible workplace terms, but they do not fit this sentence's meaning and form. This is the precise term already used in the professional response. It fits both the grammar and the technical meaning.

10. Board Briefing: Material Risk and Disclosure - 2. Choose the strongest professional response

Correct answer	Why it fits
C. I would not say that yet. We can say legal is assessing materiality and will update the disclosure committee after reviewing the request and business impact.	The strongest response is specific about what must be checked and avoids either false certainty or vague resistance. This response protects the decision while still moving the conversation forward.

10. Board Briefing: Material Risk and Disclosure - 3. Select the next decision move

Correct answer	Why it fits
A. Verify impact, name the decision owner, and state the evidence that would change the recommendation.	A practical next move connects a named fact to an owner and a condition for proceeding, revising, or escalating. This creates a bounded decision: a fact to verify, an accountable person, and a clear condition for action.

11. Internal Investigation: Neutral Interviewing - 1. Complete the field language

Correct answer	Why it fits
A. timeline	'timeline' is the precise language in this response. The other options are plausible workplace terms, but they do not fit this sentence's meaning and form. This is the precise term already used in the professional response. It fits both the grammar and the technical meaning.

11. Internal Investigation: Neutral Interviewing - 2. Choose the strongest professional response

Correct answer	Why it fits
A. I cannot share interview details. I can ask you about your own recollection and any documents that may help us understand the timeline.	The strongest response is specific about what must be checked and avoids either false certainty or vague resistance. This response protects the decision while still moving the conversation forward.

11. Internal Investigation: Neutral Interviewing - 3. Select the next decision move

Correct answer	Why it fits
A. Verify timeline, name the decision owner, and state the evidence that would change the recommendation.	A practical next move connects a named fact to an owner and a condition for proceeding, revising, or escalating. This creates a bounded decision: a fact to verify, an accountable person, and a clear condition for action.

12. Oral Argument: Answering the Hard Question - 1. Complete the field language

Correct answer	Why it fits
A. curable	'curable' is the precise language in this response. The other options are plausible workplace terms, but they do not fit this sentence's meaning and form. This is the precise term already used in the professional response. It fits both the grammar and the technical meaning.

12. Oral Argument: Answering the Hard Question - 2. Choose the strongest professional response

Correct answer	Why it fits
B. Respectfully, the text supports it when subsections (b) and (c) are read together. If the Court disagrees, our narrower fallback is that dismissal should be without prejudice because the defect is curable.	The strongest response is specific about what must be checked and avoids either false certainty or vague resistance. This response protects the decision while still moving the conversation forward.

12. Oral Argument: Answering the Hard Question - 3. Select the next decision move

Correct answer	Why it fits
D. Verify curable, name the decision owner, and state the evidence that would change the recommendation.	A practical next move connects a named fact to an owner and a condition for proceeding, revising, or escalating. This creates a bounded decision: a fact to verify, an accountable person, and a clear condition for action.